Foundations and Legitimacy

Why Civilizations Are Born in Violence and Live by Concealment

Macharia Barii

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Abstract

This essay argues that every civilization is founded on an injustice—a first allocation of land, water, labor, and authority that is established before any framework exists within which it could be negotiated. The first allocation is seized, not agreed; it is imposed by a coalition, not accepted by a population; and it is violence, not consent. Every civilization that follows is an attempt to justify the first allocation, to conceal its violence, and to make the order acceptable to those who bear its cost. This attempt is what we call legitimacy. It is unending because the first allocation can never be fully justified, and the concealment can never be fully successful. The gap between the claim and the reality is the civilization. The essay develops this argument in eight parts: the problem of the first move, the failure of negotiation, the coalition and the population, the concealment, the return of the concealed, the alternative, the hope, and the moral. It concludes that the question of civilization is not whether it is founded on violence—it always is—but whose ledger the violence established, and for whom.

1. The Problem of the First Move

Imagine a world before civilization. There are people, resources, and relations among them. But there is no framework—no law, no authority, no legitimacy regime, no state. There is only the raw ledger: who controls what, who can do what to whom, and who can enforce it.

In this world, there is no way to negotiate a first allocation. Negotiation requires a framework: rules of procedure, enforcement of agreements, a third party to adjudicate disputes. But the framework does not yet exist. It must be created, and creation is not negotiation.

Consider the simplest case. Two groups claim the same river valley. One group is upstream; the other is downstream. The upstream group can divert the water; the downstream group cannot. What happens? There is no negotiation, because there is no framework within which to negotiate. There is only the raw power of each group. The upstream group can take the water; the downstream group can resist. The outcome is determined by force: whoever can impose their will, wins.

This is the first move. It is not a negotiation among equals. It is a contest of power, and the contest is settled by violence. The winner establishes the first allocation, and the first allocation becomes the foundation of the civilization that follows.

This is the structural fact that the standard story conceals. The standard story presents civilization as beginning with an agreement—a social contract, a covenant, a constitution. The framework says: civilization begins with a seizure. The agreement comes later, and it comes as a justification of the seizure, not as its substitute.

2. The Failure of Negotiation

One might object: surely there are cases where the first allocation was negotiated, not seized. Surely some civilizations were founded by agreement among equals. The objection is plausible, and it is worth taking seriously. But it fails on examination, for three reasons.

First, the groups are never equals. Every historical case of a founding involves groups with different resources, different capabilities, and different vulnerabilities. The upstream group has more water; the downstream group has less. The pastoralists have more mobility; the agriculturalists have more fixed assets. The coastal group has more trade; the inland group has less. The difference in resources is the difference in power, and the difference in power is what determines the outcome. There is no negotiation among equals, because there are no equals.

Second, the failure of negotiation is structural. Negotiation requires a framework, and the framework does not yet exist. The groups can attempt to negotiate, but the attempt will fail, because there is no procedure for resolving disputes, no enforcement of agreements, and no third party to adjudicate. The failure is not a failure of will or of reason; it is a failure of conditions. The conditions for negotiation are the product of the framework, and the framework is the product of the negotiation. The circle cannot be closed.

Third, the stronger group prefers violence. Even if negotiation were possible, the stronger group would prefer not to negotiate. Negotiation produces a compromise, and the compromise is always less than what the stronger group could obtain by force. The stronger group has no incentive to negotiate when it can impose. The result is that negotiation, when it occurs, is a tactic of the stronger group, not a constraint on it.

The conclusion is unavoidable. The failure of negotiation is not an accident; it is the structure of the situation. The first allocation cannot be negotiated, because there is no framework within which to negotiate, and the stronger group has no incentive to create one. The first allocation must be seized, and the seizure is violence.

3. The Coalition and the Population

Every civilization is founded by a coalition. The coalition is the group that seizes the first allocation and establishes the order that follows. It is the group that controls the state, commands the army, owns the land, and writes the law. It is the group whose interests the order serves.

The coalition is always narrower than the population. This is not a coincidence; it is a structural necessity. The population is the group that is governed; the coalition is the group that governs. The population is large; the coalition is small. The population has diverse interests; the coalition has concentrated interests. The coalition's interests are served by the order; the population's interests are served only to the extent that the coalition needs the population's cooperation.

The coalition cannot persuade the population to accept a narrower allocation, because the population has no reason to accept it. The population would prefer a broader allocation, or an equal one. The only way the coalition can impose the narrower allocation is by force, and the force is violence.

This is the structural fact that the framework makes visible. The coalition is a minority; the population is a majority. The coalition cannot win the population's consent; it can only impose the order. The imposition is violence, and the legitimacy regime is the justification of

the violence.

The coalition does not have to be a small group of conspirators. It can be a large group—a tribe, a class, a region—that has enough power to impose its will on the rest. But it is always a minority, because the population is always larger than the coalition, and the coalition's allocation is always narrower than the population's preference.

4. The Concealment

The first allocation is violence. But violence alone cannot sustain an order. An order that relies on force alone must spend everything on force, and it has nothing left for anything else. It is expensive, unstable, and vulnerable to any challenge that can match its force.

The coalition needs a justification. It needs a legitimacy regime that makes the first allocation appear natural, necessary, and just. It needs a story that the population can accept, and that the population will accept because the story makes the order appear to be something other than what it is.

This is the function of the legitimacy regime. It does not change the allocation; it changes the appearance of the allocation. It does not make the violence disappear; it conceals the violence. It does not make the order just; it makes the order appear just.

The legitimacy regime is a technology of concealment. It has three components.

First, a *cosmology*. A story about the order of the universe that makes the social order appear to be a reflection of the cosmic order. Ma'at was a cosmology: the pharaoh was the guarantor of cosmic order, and the social hierarchy was a reflection of the cosmic hierarchy. The Mandate of Heaven was a cosmology: the emperor was the Son of Heaven, and the social order was a reflection of the celestial order.

Second, a *genealogy*. A story about the origin of the order that makes the coalition appear to be the legitimate heir of a primordial founder. The pharaoh was the successor of Narmer, who had unified the two lands. The emperor was the successor of the sage-kings, who had established the order. The Roman Senate was the successor of the founders, who had established the Republic.

Third, a *morality*. A story about the obligations of the population that makes compliance appear to be a virtue and resistance appear to be a vice. The Egyptian peasant was supposed to work the land, pay the taxes, and serve the corvée, because that was Ma'at. The Chinese peasant was supposed to pay the taxes, serve the corvée, and obey the magistrate, because that was the Mandate. The Roman citizen was supposed to serve in the army, pay the taxes, and respect the law, because that was the res publica.

Together, these three components produce the legitimacy regime. The cosmology explains why the order is natural. The genealogy explains why the coalition is legitimate. The morality explains why the population should comply. The three components work together to make the first allocation appear to be something other than what it is: not a seizure, but a foundation; not violence, but order; not extraction, but justice.

5. The Return of the Concealed

The concealment is never complete. The violence that the legitimacy regime conceals always returns, in moments when the legitimacy regime fails. The moments are the intermediate periods,

the civil wars, the revolutions, the collapses. They are the moments when the order breaks down, the coalition fractures, the population rises, and the violence that had been concealed becomes visible.

In these moments, the legitimacy regime is exposed as what it is: a concealment, not a justice. The cosmology is revealed as a story, the genealogy as a fiction, the morality as a justification. The order that the legitimacy regime justified is revealed as a first allocation that was seized, not agreed; imposed, not accepted; violent, not just.

The return of the concealed is not an accident. It is a structural feature of the legitimacy regime. The regime conceals the violence by making the order appear just, but the appearance is always fragile. Any event that exposes the gap between the claim and the reality—a famine, a defeat, a corruption scandal, a succession crisis—can trigger the return. And when the return happens, the legitimacy regime is exposed, and the order is exposed, and the violence that was concealed becomes visible.

This is why the intermediate periods were not accidents of Egyptian history. They were the return of the violence that Ma'at had concealed. The Old Kingdom's Ma'at had concealed the conquest of Narmer; the First Intermediate Period exposed it. The Middle Kingdom's Ma'at had concealed the reconsolidation; the Second Intermediate Period exposed it. The New Kingdom's Ma'at had concealed the imperial expansion; the Third Intermediate Period exposed it.

The same is true of every civilization. Every civilization has its intermediate periods, its civil wars, its revolutions, its collapses. They are the moments when the violence that the legitimacy regime concealed returns, and the order that the violence established is revealed as what it was.

6. The Alternative

If civilizations are founded on violence, is there an alternative? The framework says: yes, but it is not a civilization in the usual sense. It is a different kind of order, one that does not require a first allocation established by violence.

The alternative is a symbiotic order—an order in which the relations are symbiotic, the coalition is broad enough to include all actors whose capacity is at stake, and the legitimacy regime is earned rather than manufactured. A symbiotic order does not have a first allocation established by violence, because it has no first allocation: the relations are negotiated, adjusted, and renegotiated through institutions that are themselves symbiotic.

A justice regime is effective if and only if it reduces the injustice gap faster than the disequilibrium forces increase it. A symbiotic order is one in which the justice regime is effective, and the effectiveness is not a concealment; it is the actual reduction of the gap.

Has such an order ever existed? The framework says: not fully. The closest historical examples are probably the Mesopotamian city-states, which developed institutional mechanisms for adjustment, and the Greek city-states, which developed democratic institutions for participation. But both were partial: the Mesopotamian city-states excluded the slaves, and the Greek city-states excluded women, slaves, and metics. The alternative has never been fully realized. But the framework says it is possible—not as a utopia, but as an order that is structurally different from the orders we have known.

7. The Hope

If the alternative is possible, why has violence been the rule? The framework gives three reasons.

First, violence is cheaper in the short run. A coalition that seizes the first allocation by force can establish an order immediately. A coalition that negotiates a symbiotic order must wait for the negotiation to produce an agreement, and the agreement may never come. The coalition that uses violence has a first-mover advantage, and the advantage is decisive in the short run.

Second, violence is self-reinforcing. A coalition that seizes power by force must maintain power by force, because the population has no reason to accept the order otherwise. The maintenance of power by force requires a legitimacy regime, and the legitimacy regime requires a concealment of the violence. The concealment becomes the technology of the order, and the order becomes dependent on the concealment.

Third, the conditions for symbiosis are rare. A symbiotic order requires a broad coalition, institutional adjustment, earned legitimacy, and the four freedoms. These conditions are rare in history, because they require a configuration of geography, history, and political competition that is unusual. When the conditions are present—as they were in Athens—the order can be symbiotic, at least partially. When they are absent—as they were in most of history—the order must be violent.

This is the framework's answer to the question of why violence has been the rule. Violence is the rule because it is cheaper, self-reinforcing, and the conditions for the alternative are rare. The alternative is possible, but it is not the default. The default is violence, and the legitimacy regime is the technology by which the violence is concealed and the order is made acceptable.

The hope is not that violence can be eliminated. The hope is that it can be reduced—that the first allocation can be partially renegotiated, that the coalition can be broadened, that the legitimacy regime can be earned rather than manufactured, and that the four freedoms can be protected. None of these is easy, and none is permanent. But they are possible, and they are the work of civilization.

8. The Moral

The moral of this analysis is not that civilizations are bad. It is that civilizations are ledgers, and every ledger has a foundation that was established by violence, and every foundation is concealed by a legitimacy regime. The civilization is the concealment, not the foundation. And the concealment is what allows the civilization to endure.

This is why the framework's question is not "is this civilization good or bad?" It is "whose ledger is this, and for whom?" The question asks you to look past the legitimacy regime to the ledger beneath it, and to see who benefits from the first allocation and who bears its cost.

For ancient Egypt, the answer is: the coalition's, and at the population's expense. The coalition seized the first allocation by conquest, concealed the conquest with Ma'at, and maintained the order for three thousand years. The population accepted the order because the order appeared just. The appearance was the con. And the con was the civilization.

The same is true of every civilization. The first allocation was established by violence, concealed by a legitimacy regime, and maintained by a coalition. The population accepted the order because the order appeared just. The appearance was the con. And the con was the civilization.

The question is not whether a civilization is a con. It always is. The question is what the con conceals, and at whose expense, and whether the concealment can be reduced.

9. The Unending Quest

The quest for legitimacy is unending because the first allocation can never be fully justified, and the concealment can never be fully successful.

The first allocation can never be fully justified because it was violence. No justification can make violence just; the best that a justification can do is to make the violence appear just. The appearance is fragile, and it is always vulnerable to the return of the concealed.

The concealment can never be fully successful because the population is not passive. The population experiences the extraction, the corvée, the taxation, and the violence. The experience is real, and it cannot be fully concealed. The population may accept the order because the order appears just, but the appearance is always in tension with the experience. The tension is the source of the intermediate periods, the civil wars, the revolutions, and the collapses.

This is why the quest for legitimacy is unending. Every civilization must maintain the concealment, and every civilization must face the return of the concealed. The maintenance and the return are the dynamic of civilization. The civilization is the tension between them.

The framework's contribution is to make the tension visible. It shows the first allocation beneath the justification, the violence beneath the legitimacy, the coalition beneath the population. And in making the tension visible, it makes the question askable: whose ledger is this, and for whom?

10. The Question

The question is always the same: whose ledger is this, and for whom?

For ancient Egypt, the answer is: the coalition's, and at the population's expense. For Mesopotamia, the answer is: the king's, the code's, and the city's. For Greece, the answer is: the demos', and at the expense of the slaves, the women, and the metics. For Rome, the answer is: the Senate's, the emperor's, and the provincial elites'. For China, the answer is: the Mandate's, the emperor's, and the bureaucracy's.

For our own civilization, the question remains open. The framework does not answer it. It gives us the language and the method to answer it ourselves. And the answer is the work of those who ask it.

The rest is history—or its absence. And the choice of which it will be is always, in part, our own.

A Closing Thought

Every civilization is founded on violence. Every civilization conceals the violence with a legitimacy regime. Every civilization faces the return of the concealed. Every civilization is a tension between the concealment and the return.

This is the structure of the con. It is not a conspiracy; it is a condition. The coalition seizes the first allocation, the legitimacy regime conceals the seizure, and the population accepts the concealment because the alternative is worse.

The question is not whether the con exists. It always does. The question is what the con conceals, and at whose expense, and whether the concealment can be reduced.

The framework says: the con can be reduced. The first allocation can be partially renegotiated. The coalition can be broadened. The legitimacy regime can be earned rather than manufactured. The four freedoms can be protected. None of these is easy, and none is permanent. But they are possible, and they are the work of civilization.

The quest for legitimacy is unending because the con is never fully concealed and the violence is never fully justified. But the quest is not futile. Each step toward a broader coalition, a more effective adjustment mechanism, a more earned legitimacy, and a more protected set of freedoms is a step toward a less unjust order. The steps are small and the progress is partial, but the direction is real.

The question is always the same: whose ledger is this, and for whom? The answer is the work. The work is the civilization. And the civilization is the quest. That is the hope. The rest is history—or its absence.